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|   |                                                      | <p>Notice. Those documents include the declarations filed in support of the motion for relief from default, discovery requests, and email correspondence. None of the documents support Plaintiff's causes of action. Therefore, Plaintiff has not met his burden to show he has a probability of prevailing on his claims.</p> <p>In light of the above, the Special Motion to Strike is GRANTED.</p> <p>Gafe Pizza's request for attorney fees is DENIED.</p> <p>Gafe Pizza's Demurrer to the FAC is MOOT in light of the granting of the Special Motion to Strike.</p> <p>Gafe Pizza to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 6 | <b>Bigalimov vs. Tapia</b><br><br><b>24-01420887</b> | <ol style="list-style-type: none"> <li>1) Demurrer to Complaint</li> <li>2) Demurrer to Complaint</li> <li>3) Motion to Strike - Anti SLAPP</li> <li>4) Motion to Strike - Anti SLAPP</li> <li>5) Case Management Conference</li> </ol> <p>Kozo Nakagawa, Fernando Tapia, Kenia Covolo, Julie Tapia, Salmex Pizza Inc., Gafe Pizza Inc., Salmar Pizza Inc., Domino's Pizza Inc. and Granvista move for an order striking the entire Complaint of Plaintiff Rolan Bigalimov on the grounds that the allegations arise out of Defendants exercise of the right of petition and to free speech and it is not probable that Plaintiff will prevail on his claims.</p> <p>Code of Civil Procedure section 425.16 provides in relevant part: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the Court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the</p> |

claim.” This section is to be construed broadly. (Code Civ. Proc., § 425.16(a).)

The court’s determination of an anti-SLAPP motion is a two-step process. First, the court determines if the party moving to strike a cause of action has met its initial burden to show that the cause of action arises from an act in furtherance of the moving party’s right of petition or free speech. Then, if the court determines that showing has been made, the court determines whether the opposing party has demonstrated a probability of prevailing on the claim. (Navellier v. Sletten (2002) 29 Cal.4th 82, 88.)

“In the anti-SLAPP context, the critical consideration is whether the cause of action is based on the defendant’s protected free speech or petitioning activity.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 89.) “In deciding whether the initial ‘arising from’ requirement is met, a court considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’” (Ibid.)

Here, Plaintiff’s action arises out of an administrative hearing before the California Unemployment Insurance Appeals Board. Plaintiff contends that representatives of Salmex Pizza Inc. submitted a set of 20+ pages of false and fake documents in support of their opposition to Plaintiff’s unemployment insurance claim and appeal. Participation in an administrative hearing falls under the umbrella of the constitutional right to petition. Indeed, “[t]he constitutional right to petition . . . includes the basic act of filing litigation or otherwise seeking administrative action.” (Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106, 1115, internal quotations omitted [applying anti-SLAPP statute to proceedings before HUD]; see also Dible v. Haight Ashbury Free Clinics, Inc. (2009) 170 Cal.App.4th 843, 850 [holding that statements made at EDD unequivocally were part of an official proceeding and subject to anti-SLAPP statutes].)

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|   |                                                              | <p>Defendants have met their burden of showing that this action arises out of acts in furtherance of their right of petition or free speech and that activity is protected by the anti-SLAPP statute.</p> <p>The burden now shifts to Plaintiff to demonstrate that he has a probability of prevailing on his claims. The Complaint makes references to causes of action for fraud, defamation/libel, civil rights violations, intentional infliction of emotional distress, and conspiracy/vicarious liability.</p> <p>Plaintiff's own declaration provides information as to how much time he spent preparing his opposition. Otherwise, it does not present any evidence in support of his claims. Plaintiff has attached several documents to ROA 82, which he has titled an Opposition to Request for Judicial Notice of Defendants but what in actuality appears to be his own request for judicial notice. Those documents include the documents submitted to the CUIAB, discovery requests, and email correspondence. None of the documents support Plaintiff's causes of action.</p> <p>In light of the above, the Special Motions to Strike are GRANTED.</p> <p>Defendants' request for attorney fees is DENIED.</p> <p>Defendants' Demurrers to the Complaint are MOOT in light of the granting of the Special Motions to Strike.</p> <p>Defendants to give notice.</p> |
| 7 | <b>Owen vs. Eagle Propco 6 LLC</b><br><br><b>24-01426365</b> | <p>Motion to Strike Portions Of Complaint</p> <p><b>Continue to 4/29/25 to be heard with Demurrer</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |